

No. 11 of 2017

VIRGIN ISLANDS

PROCEEDS OF CRIMINAL CONDUCT (AMENDMENT) ACT, 2017

ARRANGEMENT OF SECTIONS

Sections

1. . Short title.
2. . Section 2 amended.
- 3...Section 27 amended.
- 4...Section 32 amended.
- 5...Section 33 amended.

I Assent

(Sgd.) John S. Duncan, OBE,
Governor
9th June, 2017

VIRGIN ISLANDS

No. 11 of 2017

An Act to amend the Proceeds of Criminal Conduct Act, 1997 (No. 5 of 1997).

[Gazetted 12th June, 2017]

ENACTED by the Legislature of the Virgin Islands as follows:

Short title.

1. This Act may be cited as the Proceeds of Criminal Conduct (Amendment) Act, 2017.

Section 2
amended.
No. 5 of 1997

2. Section 2 of the Proceeds of Criminal Conduct Act, 1997 (hereinafter referred to as the “principal Act”) is amended by deleting the definition of police officer and substituting the following definition:

“police officer” includes the Director and an investigating Officer of the Agency;”.

Section 27
amended.

3. Section 27 of the principal Act is amended

(a) by deleting subsection (7) and replacing with the following subsection:

“(7) Notwithstanding subsection (4), a Code of Practice may in specific cases of non-compliance with or in contravention of the provisions of the Code create offences and impose penalties to be enforced

(a) by the Commission for entities that are regulated by the Commission; or

(b) by the Agency for entities that are regulated by the Agency,

as administrative penalties, but no penalty imposed shall exceed one hundred thousand dollars.”

- (b) by deleting subsection (8) and replacing with the following subsection:

“(8) Administrative penalties collected by the

(a) Commission by virtue of subsection (7) shall be paid into a bank account to be retained for use by the Commission; and

(b) Agency by virtue of subsection (7) shall be paid into the Asset Sharing Fund of the Agency, as established under section 12 of the Financial Investigation Agency Act.”

No. 19 of 2003

- (c) by adding the following new subsection:

“(8A) Where moneys are paid into the Fund under section 8(b), the Financial Secretary, with the approval of the Minister of Finance, may determine what proportion of that amount shall be used by the Agency.”.

4. Section 32 of the principal Act is amended

Section 32 amended.

- (a) in subsection (1),

- (i) by replacing paragraph (a) with the following:

“(a) direct in relation to a country or territory outside the Territory (referred to in this section and section 33 as a “requesting country”) that, subject to such modifications as may be specified, this Act shall apply to external confiscation orders and to proceedings which have been or are to be instituted in the requesting country and may result in an external confiscation order being made there;”;

(ii) in paragraphs (b) and (c), by replacing the words “designated country” wherever they occur with the words “requesting country” ;

(b) in subsection (5), by replacing the words “designated country” with the words “requesting country”.

Section 33
amended.

5. Section 33 of the principal Act is amended in subsections (1) and (2), by replacing the words “designated country” wherever they occur with the words “requesting country”.

Passed by the House of Assembly this 20th day of April, 2017.

(Sgd.) Ingrid Moses Scatliffe,
Speaker.

(Sgd.) Phyllis Evans,
Clerk of the House of Assembly.